

19STCV17761 19STCV17761

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NATURE OF PROCEEDINGS:

Hearing on Motion to Enforce Settlement

The Motion to Enforce Settlement filed by Defendant Glendale Adventist Medical Center is continued.

BACKGROUND

Plaintiffs Vahe Menachkanian and Maryet Manaserian (collectively, "Plaintiffs") filed this action against Simon M. Keushkerian, M.D., Faisal A. Khan, M.D., and Glendale Adventist Medical Center (GAMC), alleging that a laparotomy sponge was left in Menachkanian's body following colectomy surgery performed at GAMC. (Compl., ¶ 9.)

The causes of action are: (1) Professional Negligence (Medical Malpractice); and (2) Loss of Consortium.

On September 23, 2024, Plaintiffs and GAMC executed a Settlement Agreement and Release of All Claims (the Agreement) resolving Plaintiffs' claims against GAMC. (Kjar Decl., ¶ 10, Ex. B.)

GAMC filed the Motion together with an Application to File Documents Under Seal. Plaintiffs did not file an Opposition.

LEGAL STANDARD

Code of Civil Procedure section 664.6 authorizes the Court, on motion, to enter judgment on the terms of a written settlement signed by the

parties to pending litigation. (Code Civ. Proc., § 664.6, subd. (a).) In ruling on such a motion, the Court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement and resolving disputes about its terms. (Kohn v. Jaymar-Ruby, Inc. (1994) 23 Cal.App.4th 1530, 1533.) The statute supplies a summary means of enforcing a settlement as written, and nothing in it authorizes the Court to create the material terms of a settlement rather than decide what terms the parties themselves agreed upon. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810.) The Agreement is a contract, and the Court ascertains its meaning from the writing, reading the whole together so that each part helps interpret the others. (Civ. Code, §§ 1639, 1641.)

Unless confidentiality is required by law, court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).) “A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement of the parties.” (Cal. Rules of Court, rule 2.551(a).) A court may order a record filed under seal only if it expressly finds facts establishing that (1) an overriding interest exists that overcomes the right of public access to the record, (2) the overriding interest supports sealing the record, (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, (4) the proposed sealing is narrowly tailored, and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) A contractual obligation not to disclose can constitute an overriding interest within the meaning of the rule. (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1283.) A party requesting sealing lodges the record with the Court when the request is made, and the lodged record remains conditionally under seal pending the ruling on the request. (Cal. Rules of Court, rule 2.551(b)(4), (d).)

ANALYSIS

The Motion and the Application are intertwined. GAMC asks the Court to enforce the Agreement while simultaneously asking that the Agreement be withheld from the Court's public file, and the copy GAMC has submitted is redacted. The Court cannot resolve either request on this record and continues both.

I. The Court Cannot

Determine the Meaning of the Agreement on the Redacted Copy

The Motion turns on the terms of a written settlement, so the writing governs. The Court ascertains the parties' intention from the writing and reads the Agreement as a whole, each clause helping to interpret the others. (Civ. Code, §§ 1639, 1641.) Section 664.6 authorizes the Court to enforce the terms the parties agreed upon and forbids the Court from supplying terms they did not. (Weddington Productions, Inc. v. Flick, *supra*, 60 Cal.App.4th at p. 810.) The Court can perform neither task on a document it cannot read.

The copy of the Agreement submitted with the Motion is redacted at the provisions the Motion asks the Court to enforce. The \$36,276.41 holdback figure is blacked out in section 1.4, and the condition the Motion attributes to section 6.7 does not appear in the legible portion of the exhibit at all. (Kjar Decl., Ex. B.) The Motion supplies these terms through counsel's declaration. (Kjar Decl., ¶¶ 4, 5.) A declaration paraphrasing the redacted terms is not a substitute for the writing. Because the whole of the Agreement is read together, a redacted provision cannot be construed in isolation from the clauses that surround it, any one of which may define, condition, or qualify it. The Court therefore cannot confirm that the disbursement GAMC seeks conforms to section 1.4 rather than adds to it, or that no other provision bears on when the holdback may be released, without the complete Agreement before it.

Accordingly, the Court cannot rule on the Motion to Enforce Settlement on the present record. GAMC is ordered to lodge a complete, unredacted copy of the Agreement with the Court, conditionally under seal, so that the Court may review the entire Agreement in deciding both the Application and the Motion.

II. Application to File Documents Under Seal

The Court reserves ruling on the Application until the complete Agreement is before it. GAMC asks that the Agreement be filed under seal because it contains an express confidentiality provision restricting disclosure of its existence and terms. (Sealing Appl. at p. 3:22-25.) A contractual obligation not to disclose can supply the overriding interest that rule 2.550(d)(1) requires. (Universal City Studios, *supra*, 110 Cal.App.4th at p. 1283.) Whether the remaining findings can be made, and whether any confidentiality interest is substantially probable to be prejudiced

given that GAMC has already recited much of the Agreement in its public papers, are questions the Court will decide once it has reviewed the unredacted Agreement lodged conditionally under seal. (Cal. Rules of Court, rule 2.551(b)(4), (d).)

If the Court grants the Application, it will file the Agreement under seal and, having reviewed it, rule on the Motion to Enforce Settlement. If the Court denies the Application, the lodged Agreement will be returned to GAMC, and GAMC may then determine whether to file the Agreement in the public record and proceed on the Motion. (Cal. Rules of Court, rule 2.551(b)(6).)

CONCLUSION

The Motion to Enforce Settlement filed by GAMC is continued. GAMC is ordered to lodge a complete, unredacted copy of the Settlement Agreement and Release of All Claims with the Court, conditionally under seal, no later than five court days before the continued hearing.